



SPONSOR: Rep. Dukes & Rep. Griffith & Sen. Poore
Reps. Gorman, Hilovsky, K. Johnson, Phillips, Romer,
Ross Levin, Snyder-Hall, Shupe, Lambert, Postles; Sens.
Hansen, Hocker, Hoffner, Paradee, Pettyjohn, Wilson,
Sokola

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 75

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO THE STATUTE OF LIMITATIONS
FOR CIVIL CLAIMS BASED ON SEXUAL ABUSE OF A MINOR.

1 WHEREAS, in June of 2007, the 144th General Assembly unanimously passed Senate Bill 29, which gave victims
2 of childhood sexual abuse a two year “window,” allowing them to bring a civil action against their abusers in cases
3 previously barred by the law. The bill, known as the Child Victim’s Act of 2007, was signed into law on July 10, 2007; and

4 WHEREAS, in enacting the bipartisan Child Victim’s Act, Delaware was one of two states at the forefront of a
5 revolution for children; and

6 WHEREAS, following the enactment of SB 29, opponents of the bill challenged it in the Delaware Supreme Court
7 in *Sheehan v. Oblates of St. Francis de Sales*, 15 A.3d 1247 (Del. 2011) (en banc), claiming that retroactivity and changes
8 to the statute of limitation were unconstitutional; and

9 WHEREAS, the Delaware Supreme Court unanimously upheld the constitutionality of the Child Victim’s Act of
10 2007; and

11 WHEREAS, 22 states have now followed the pioneering examples of Delaware and California in enacting Child
12 Victim’s Act legislation for survivors of childhood sexual abuse, most recently in the State of Maryland where SB 686
13 (“The Child Victim’s Act of 2023”) was signed by its Governor on April 11, 2023, to retroactively remove the statute of
14 limitations for all claims of sexual abuse of a minor in that State; and

15 WHEREAS, while all victims of childhood sexual abuse were covered by the Child Victim’s Act of 2007, many
16 were too young to avail themselves of the opportunity to sue their abusers during the two year “window” provided by the
17 Act; and

18 WHEREAS, for example, an 8-year-old child sexually abused in 1999 was only 16 when Delaware had its two
19 year window for legal claims; and

20 WHEREAS, victims of child sexual abuse face significant barriers to disclosure such that the average length of
21 time before disclosure is around 20 years and significantly longer for those who experience institutional abuse; and

22 WHEREAS, most victims do not acknowledge or understand their abuse and its consequences until well into
23 adulthood, long after the statute of limitations has expired on their claims; and

24 WHEREAS, it is the intent of this legislature and the purpose of this legislation to give full access to justice for
25 victims of childhood sexual abuse regardless of when it occurred.

26 NOW, THEREFORE:

27 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

28 Section 1. Amend § 8145, Title 10 of the Delaware Code by making deletions as shown by strike through and
29 insertions as shown by underline as follows:

30 § 8145. Civil suits for damages based upon sexual abuse of a minor by an adult.

31 (a) A cause of action based upon the sexual abuse of a minor by an adult may be filed in the Superior Court of this
32 State at any time following the commission of the act or acts that constituted the sexual abuse. A civil cause of action for
33 sexual abuse of a minor shall be based upon sexual acts that would constitute a criminal offense under the Delaware Code.

34 ~~(b) For a period of 2 years following July 9, 2007, victims of child sexual abuse that occurred in this State who~~
35 ~~have been barred from filing suit against their abusers by virtue of the expiration of the former civil statute of limitations,~~
36 ~~shall be permitted to file those claims in the Superior Court of this State. If the person committing the act of sexual abuse~~
37 ~~against a minor was employed by an institution, agency, firm, business, corporation, or other public or private legal entity~~
38 ~~that owned a duty of care to the victim, or the accused and the minor were engaged in some activity over which the legal~~
39 ~~entity had some degree of responsibility or control, damages against the legal entity shall be awarded under this subsection~~
40 ~~only if there is a finding of gross negligence on the part of the legal entity. Victims of child sexual abuse who have been~~
41 ~~barred from filing a cause of action based upon the sexual abuse of a minor by an adult by virtue of the expiration of a civil~~
42 ~~statute of limitation, notice of claim, presentation deadline, or any other time limit that had expired, or for which a final~~
43 ~~judgment was rendered based on the expiration of any time limitation or other procedural bases, are permitted to file those~~
44 ~~claims in the Superior Court at any time.~~

45 (c) No action relating to the sexual abuse of a minor by an adult that is filed or pending after [the effective date of
46 this act] may be dismissed by virtue of the expiration of a civil statute of limitations.

47 (d) This section applies to any actions for damages against any person, institution, public or private entity,
48 including any charitable organization, educational institution, hospital, and the government. The State waives sovereign
49 immunity in a cause of action based upon the sexual abuse of a minor by an adult.

50 (e) (c) A person against whom a suit is filed may recover attorneys' fees where the Court determines that a false
51 accusation was made with no basis in fact and with malicious intent. A verdict in favor of the accused shall not be the sole

- 52 basis for a determination that an accusation was false. The Court must make an independent finding of an improper motive
- 53 to award attorneys' fees under this section.

SYNOPSIS

A victim of child sexual abuse that occurred in this State who has been barred from filing suit against the victim's abuser by virtue of the expiration of a former civil statute of limitations are permitted to file these claims in the Superior Court of this state at any time. This is intended to apply retroactively.